

BSA 2023

Bharatiya Sakshya Adhiniyam, 2023

Bharatiya Sakshya Adhiniyam (BSA), 2023

User Query :

A shop near my home has CCTV footage showing a person stealing my motorcycle. The shopkeeper copied the relevant video from the CCTV system onto a pen drive and gave it to me. The accused now claims that the video could have been edited or modified after it was copied. What legal provisions apply to proving and admitting this footage as electronic evidence?

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Prepared by : NyaySahayak

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APPLICABLE SECTIONS

Section 61 — Electronic or digital record

CCTV footage is an electronic/digital record.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63** .

Section 63 — Special provisions relating to electronic records

Central to the pen-drive copy/computer output and required certificate/process.

Section 39 (2) — Opinion of Examiner of Electronic Evidence

Relevant where authenticity or modification requires expert opinion.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 Sections 61-63 are the core admissibility/proof framework. Because editing is specifically alleged, **section 39** (2) may also support expert examination.

✓ STRENGTHS & RIGHTS

1 The source shopkeeper and original CCTV system can help establish provenance.

✗ RISKS & OBLIGATIONS

1 A copied file is not automatically inadmissible, but integrity and **section 63** conditions should be demonstrated.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1. Record the export process, preserve the original source, hash the copy if possible, and document custody.

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